LIMITED WARRANTY

This warranty is a global voluntary manufacturer's warranty. Your rights under this warranty may be in addition to, and not instead of, any rights provided by your local consumer law. You may also have other rights, which vary by country, state or province. For more information about your local consumer law rights, please contact your vendor or a local consumer law association.

Warranty Period

This Limited Warranty is valid for a three (3) year period beginning on the date of purchase by the original customer (the "Warranty Term"). All claims for warranty support must be properly submitted to AMD on or before the end of the Warranty Term (some jurisdictions do not allow limitations on the duration of a manufacturer's warranty, so this limitation may not apply to you).

Warranty Scope

This Limited Warranty applies only to the original purchaser of the AMD processor contained in this box that has a valid, AMD-verified serial number and was in its originally sealed packaging at the time of the original purchase (the "AMD Processor") and **does not extend to subsequent owners or other third parties**, except where required under local law. Except as otherwise provided herein, and only for the Warranty Term stated above, AMD warrants that when properly installed and used with the heatsink/fan provided herewith (or if a heatsink/fan is not provided, then with a third party cooling solution that conforms to the applicable AMD thermal design documentation or with AMD approved cooling solutions - see https://developer.amd.com/resources/epyc-resources/epyc-specifications/ for details), under normal use conditions, the AMD Processor will substantially conform to the applicable AMD Specifications and will be free from defects in material and workmanship that result in a failure to operate. AMD does not warrant that the operation of the product will be uninterrupted or error-free.

This Limited Warranty **does not apply** to any software that may be delivered with your AMD Processor. Please refer to the licensing agreement accompanying the software for details of your rights with respect to the use of software.

No reseller, agent, or employee of AMD is authorized to make any modification, extension, or addition to this Limited Warranty.

Remedies

If the AMD Processor fails to meet the above warranties during the Warranty Term, AMD, at its sole option, will: (1) repair the AMD Processor by means of hardware and/or software; (2) replace the AMD Processor with a new, previously owned or reconditioned AMD Processor of the same model or with a model that has equivalent performance; OR (3) if AMD cannot repair or replace the AMD Processor, refund the purchase price of the AMD Processor, in exchange for the return of the product. The remedies stated above will be the exclusive remedy for any

breach of this Limited Warranty, notwithstanding any failure of the essential purpose of any such remedy. AMD is not responsible for payment or reimbursement of removal or replacement costs, or any other costs or expenses arising out of or related to a breach of this Limited Warranty except as expressly provided above.

Warranty Limitations

THIS LIMITED WARRANTY SUPERSEDES ALL OTHER MANUFACTURER'S WARRANTIES FOR THE AMD PROCESSOR AND IS PROVIDED IN LIEU OF ALL OTHER WARRANTIES, EXPRESSED OR IMPLIED. TO THE EXTENT NOT PROHIBITED BY APPLICABLE LAW, AMD EXPRESSLY DISCLAIMS ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT OF THIRD-PARTY RIGHTS, AND ANY OTHER WARRANTIES THAT MAY ARISE FROM ANY COURSE OF PERFORMANCE, COURSE OF DEALING OR USAGE OF TRADE. Some jurisdictions do not allow the exclusion of implied warranties, so this limitation may not apply to you.

Jurisdiction and Venue

This warranty gives you specific legal rights. You may also have other rights which vary from state to state, and jurisdiction to jurisdiction. The United Nations Convention on Contracts for the International Sale of Goods does not apply to this warranty and is excluded. Unless prohibited by applicable law: (I) This warranty and all disputes that may arise from it shall be governed by the following laws (based on where the sale of the applicable AMD Processor occurred), without reference to applicable conflict of laws provisions: for Asia Pacific countries, the laws of Singapore will apply, and the exclusive forum for all dispute resolution will be Singapore; for Japan, the laws of Japan will apply, and the exclusive forum will be Tokyo; for the United Kingdom and European Union, the laws of England and Wales will apply, and the exclusive forum will be London; for Mainland China, the PRC laws will apply; for Hongkong, the laws of Hongkong will apply; for Taiwan, the laws of Taiwan will apply; for the rest of the world, the laws of the state of Texas, USA will apply, and the exclusive forum will be the state and federal courts located in Travis County, Texas, USA; and (ii) You hereby consent to the personal jurisdiction of the courts of the applicable forum listed above and, to the adjudication of all disputes that may arise hereunder in the English language.

Warranty Exclusions

This Limited Warranty does not apply to any AMD Processor where AMD determines that the defect or non-conformance was caused by any of the following: (i) use of a heatsink/fan not provided or expressly recommended by AMD or otherwise note conforming to the applicable AMD thermal design documentation requirements; (ii) improper use, operation or modification outside of the AMD Specifications; (iii) abuse, negligence, or improper handling, installation or testing; (iv) accident, loss or damage in transit; (v) overclocking the Product (even when enabled by AMD hardware and/or software); (vi) design defects or errors in the Product disclosed as Errata in AMD technical documents found at www.amd.com/en/support/tech-docs; (vii) defects in the board, computer system or other product into which the AMD Processor was incorporated; (vii) unauthorized repair or alteration by a person other than AMD; or (viii) any other external factors beyond the control of AMD. Further, this Limited Warranty

provides no coverage against security vulnerabilities or security threats, including intentional misconduct by third parties.

Your AMD Processor is not designed, intended, authorized for use as a component in any system intended for surgical implant into the body, or in any other application intended to support or sustain life, or in any other application in which the failure of AMD's product could create a situation where personal injury, death, or severe property or environmental damage may occur. Any such use will cause this Limited Warranty to be null and void.

This Limited Warranty does not cover any costs relating to removal or replacement of any AMD Processor or any other cost associated with replacement for the AMD Processor except as expressly provided above.

Limitations on AMD's Liability

TO THE MAXIMUM EXTENT ALLOWED BY LAW, AMD'S RESPONSIBILITY UNDER THIS LIMITED WARRANTY (OR UNDER ANY OTHER WARRANTY IMPOSED UNDER APPLICABLE LAW THAT CANNOT BE DISCLAIMED) IS LIMITED TO THE REMEDIES EXPRESSLY STATED ABOVE. TO THE MAXIMUM EXTENT ALLOWED BY LAW, AMD IS NOT RESPONSIBLE FOR ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, OR CONSEQUENTIAL DAMAGES RESULTING FROM ANY BREACH OF WARRANTY OR UNDER ANY OTHER LEGAL THEORY, INCLUDING BUT NOT LIMITED TO LOST REVENUES, LOST PROFITS, DOWNTIME, LOSS OF GOODWILL, DAMAGE TO OR REPLACEMENT OF PROPERTY, COST OF LABOR, AND ANY COSTS OF RECOVERING, REPROGRAMMING, OR REPRODUCING ANY PROGRAM OR DATA STORED IN OR USED WITH A SYSTEM CONTAINING YOUR AMD PROCESSOR (some jurisdictions do not allow the exclusion or limitation of certain types of damages, so portions of the above limitations or exclusions may not apply to you). AMD DOES NOT ASSUME, NOR DOES AMD AUTHORIZE ANY OTHER PERSON TO ASSUME FOR AMD, ANY OTHER LIABILITIES.

How to Obtain Warranty Service

To obtain warranty service for the AMD Processor, first contact the company from which you bought your boxed Processor. After their warranty expires or if you are unable to otherwise obtain warranty service you should contact AMD online at: in the U.S., Canada, Europe, the Middle East, and Africa, http://support.amd.com/consumer for Consumers, and http://support.amd.com/partner for Resellers; and for those in Asia, Asia.support@amd.com.

Please be prepared to provide: (1) your name, address, and telephone number(s); (2) proof of purchase; (3) model number and description of your AMD Processor; (4) the serial number on your AMD Processor; (5) a detailed description of the problem; and (6) your election to accept return of the processor to you, at your cost, if AMD determines the processor is not covered by the limited warranty or to consent to AMD's destruction of the part. The Technical Service Center Representative may need additional information from you depending on the nature of the problem.

Upon receipt of a Return Material Authorization (RMA) number from the Technical Service Center Representative, you will be required to send in your processor and, if applicable, heatsink/fan that were packaged together in the retail packaging. The packaging materials themselves will not be required to process your RMA. You will be responsible for the cost of shipping your processor to the location specified by AMD.

Any replacement AMD processor is warranted under this written warranty and is subject to the same limitations and exclusions for the remainder of the original Warranty Term or one (1) year from the date on which AMD ships/has shipped the replacement, whichever is longer.
For other warranty questions and requirements, visit the AMD Customer Support website at https://www.amd.com/en/support/kb/warranty-information/epyc-pib-service, which terms are incorporated by this reference. Online RMA service is available at http://support.amd.com/consumer for Consumers and http://support.amd.com/partner for Resellers. If you do not have access to these websites you can send warranty inquires by mail to: AMD Warranty Questions, P.O. Box 3453 Sunnyvale, CA 94088-3453. (Please do not send the product to this address)

TRADEMARKS

AMD, the AMD Arrow Logo, AMD EPYC, and combinations thereof are trademarks of Advanced Micro Devices, Inc. Other names used in the product documentation are for identification purposes only and may be trademarks of their respective owners.

If you purchased your AMD Processor in Australia, the following provision applies: Our goods come with guarantees that cannot be excluded under the Australian Consumer Law. You are entitled to a replacement or refund for a major failure and for compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure.